

IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

DEBRA NELSON

Plaintiff,

V.

**Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air Solutions
STEPHANIE LANIER, and
SHANE SABLITSKY,**

Defendants.

C.A. No.: 2:25-CV-00405-RMG-MGB

PLAINTIFF'S MOTION TO COMPEL DISCOVERY, ENFORCE SUBPOENAS
AND FOR LEAVE TO DEPOSE ADDITIONAL WITNESSES

TO: HONORABLE JUDGE RICHARD M. GERGEL

I. INTRODUCTION AND BACKGROUND

Plaintiff Debra Nelson, proceeding pro se, respectfully moves this Court pursuant to Rules 26, 30, 34, and 37 of the Federal Rules of Civil Procedure to compel Defendant Curtiss-Wright Electro-Mechanical Corporation (hereinafter “Defendant”) to produce outstanding discovery, comply with previously issued subpoenas, and permit Plaintiff to depose three additional witnesses essential to her claims of discrimination, retaliation, and pretext.

Plaintiff has diligently pursued discovery throughout this matter. On October 30, 2025, the Court entered an Order (Dkt. 204) extending discovery through **December 5, 2025**, for the limited purpose of obtaining information previously requested in subpoenas and discovery directed to Defendant. Despite this extension, Defendant has continued to withhold relevant materials, obstruct witness attendance, and ignore discovery obligations.

II. FAILURE TO PRODUCE WITNESSES

Case No. 2:25-CV-00405-RMG-MGB

A. Brian Fogarty (Comparator Witness)

Plaintiff properly subpoenaed **Brian Fogarty** for deposition on November 5, 2025. Defense counsel later interfered by contacting the witness directly and falsely claiming he was bedridden following back surgery. Plaintiff possesses signed USPS confirmation (Exhibit E) showing service was received by his wife, contradicting defense counsel's claim that delivery was refused. Mr. Fogarty is a **comparator witness** critical to proving disparate treatment between Plaintiff, a Black female employee, and similarly situated white male employees.

B. Jeff Womack (Fact Witness)

Jeff Womack, a former coworker, acted as an information source following Plaintiff's suspension. His testimony concerns internal communications and workplace discussions regarding Plaintiff's suspension and return to work. Although his credibility has been called into question, his deposition remains relevant for impeachment and clarification of material facts. Mr. Womack was scheduled to appear on November 5, 2025, but Defendant canceled the deposition without documentation of his alleged unavailability.

C. Caleb Roy (New Witness)

Caleb Roy recently came forward as a new witness. He observed **Michelle Broman-Bolton** bully a former employee, Megan [last name unknown], in a pattern consistent with Plaintiff's allegations of workplace hostility. Management falsely claimed that Mr. Roy had been interviewed about the incident, but he confirmed that no such interview ever occurred. His testimony is necessary to show ongoing retaliation and the failure of Curtiss-Wright management to investigate harassment complaints.

III. SUPERVISORY AND EMPLOYEE TESTIMONY CONFIRMING DISCRIMINATION

A. Antonio Coleman (Deposed Supervisor Confirming Discrimination)

Case No. 2:25-CV-00405-RMG-MGB

Plaintiff deposed **Antonio Coleman**, her former supervisor, who provided sworn testimony confirming that Curtiss-Wright discriminated against **Black women and women generally**. Mr. Coleman stated that he had requested pay increases for Black women under his supervision, but those requests were ignored, while a white male employee, **Patrick Ingram**, received a raise within two weeks of requesting it. Plaintiff will supplement this motion with certified transcript excerpts upon receipt.

B. April James (Deposed Witness Confirming Discrimination Among Black Temporary Employees)

Plaintiff also deposed **April James**, who confirmed that Curtiss-Wright discriminated against **Black temporary employees** by terminating them more quickly than white temporary employees and delaying or denying conversions to direct-hire status. Plaintiff will supplement this record with certified excerpts once transcripts are available.

IV. OUTSTANDING DISCOVERY REQUESTS

On November 5, 2025, Plaintiff served supplemental discovery requests seeking the following relevant records:

1. **Patrick Ingram's pay records for 2022–2023;**
2. **Plaintiff's and Patrick Ingram's NDT certification test scores;**
3. **Patrick Ingram's Final Inspection Nuclear Division certification results; and**
4. **Antonio Coleman's badge access times for July 10–17, 2023.**

These requests are directly relevant to Plaintiff's claims of disparate treatment, comparator evidence, and ongoing discrimination confirmed through witness testimony.

Case No. 2:25-CV-00405-RMG-MGB

V. DEFENSE INTERFERENCE AND RULE 45 MISCONDUCT

Defense counsel's actions regarding witness **Brian Fogarty** constitute obstruction under Rule 45. Counsel improperly contacted the subpoenaed witness, conveyed false medical claims, and advised him to return his witness fee. The USPS record (Exhibit E) shows valid service, establishing that Defendant's statements to the Court and to Plaintiff were knowingly false.

VI. DISCOVERY EXTENSION UNDER COURT ORDER (DKT. 204)

The Court's October 30, 2025 Order expressly extended discovery through **December 5, 2025**, for the limited purpose of obtaining information previously sought. Defendant's claim that Plaintiff's recent requests are untimely is therefore incorrect. Plaintiff's requests fall squarely within the extension authorized by this Court.

VII. REQUEST FOR LEAVE TO DEPOSE ADDITIONAL WITNESSES

Pursuant to Rule 30(a)(2)(A)(i), Plaintiff seeks leave of Court to depose three additional witnesses. Plaintiff has already conducted ten depositions and must obtain leave for any beyond that limit. Good cause exists due to defense obstruction and the material importance of these witnesses:

- **(1) Brian Fogarty** – Comparator witness whose deposition was obstructed by defense misconduct and whose testimony is vital to proving disparate treatment.
- **(2) Jeff Womack** – Fact witness and coworker with firsthand knowledge of communications following Plaintiff's suspension; relevant for impeachment and factual clarification.
- **(3) Caleb Roy** – Newly identified witness to workplace bullying and false investigative reporting by management.

Each deposition is necessary to establish pretext, discrimination, and retaliation under Title VII. Plaintiff respectfully requests leave to conduct these depositions before the extended discovery deadline of **December 5, 2025**.

Case No. 2:25-CV-00405-RMG-MGB

VIII. RELIEF REQUESTED

Plaintiff respectfully requests that this Court:

1. Compel Defendant to produce the outstanding discovery items identified herein;
2. Enforce subpoenas previously issued to non-party witnesses;
3. Compel production of payroll, certification, and badge access data referenced in Plaintiff's November 5, 2025 request;
4. Compel production of personnel and conversion records by race to verify April James's testimony;
5. Enforce compliance with the Court's October 30, 2025 Order (Dkt. 204); and
6. Grant leave of Court under Rule 30(a)(2)(A)(i) to depose **Brian Fogarty, Jeff Womack, and Caleb Roy** on or before **December 5, 2025**.

Respectfully submitted 12th of November, 2025,

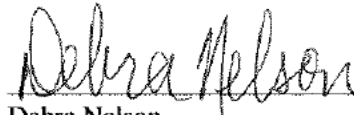

Debra Nelson
Plaintiff, Pro Se



EXHIBIT INDEX

Exhibit Description

- | | |
|---|--|
| A | October 30, 2025 Court Order (Dkt. 204) – Extension of Discovery |
| B | Rule 45 Subpoena to Brian Fogarty (Deposition Set for Nov. 5, 2025) |
| C | Email – Chase Samples to Plaintiff (Oct. 29, 2025) – Improper Contact |
| D | Email – Joseph Valenza to Plaintiff (Nov. 6, 2025) – Witness Fee Instruction |
| E | USPS Form 3811 – Michele Fogarty Signature (Nov. 1, 2025) |

Case No. 2:25-CV-00405-RMG-MGB

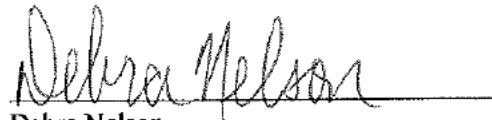
- F Plaintiff's Supplemental Discovery Request (Nov. 5, 2025) – Certification & Pay Data
- G Reserved – Deposition Transcript of Antonio Coleman (Pending Receipt)
- H Reserved – Deposition Transcript of April James (Pending Receipt)
- I Statement or Notice – New Witness Caleb Roy (Workplace Bullying Incident)

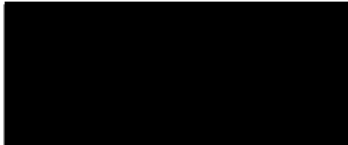
CERTIFICATE OF SERVICE

I hereby certify that on this 5th day of November, 2025, I served a true and correct copy of the foregoing **Plaintiff's Motion to Compel Discovery, Enforce Subpoenas, and for Leave to Depose Additional Witnesses** by U.S. Mail and by email, postage prepaid, addressed to:

T. Chase Samples, Esq.
chase.samples@jacksonlewis.com
Joseph V. Valenza, Esq.
joseph.valenza@jacksonlewis.com
Jackson Lewis P.C.
15 South Main Street, Suite 700
Greenville, SC 29601

Respectfully submitted 12th of November, 2025,


Debra Nelson
Pro Se Plaintiff



**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

CURTISS WRIGHT ELECTRO
MECHANICAL CORP. d/b/a Curtiss-
Wright Steam and Air Solutions,
STEPHANIE LANIER, and SHANE
SABLOTSKY,

Defendants.

Case No. 2:25-cv-00405-RMG-MGB

ORDER

Plaintiff, through counsel, initially filed this employment discrimination action in state court. (Dkt. No. 1-1.) Defendants removed the case to this Court on January 21, 2025. (Dkt. No. 1.) Shortly thereafter, Plaintiff's counsel withdrew. (Dkt. Nos. 10, 11, 12, 13, 19.) Plaintiff is now proceeding *pro se*.

This case was automatically referred to the undersigned United States Magistrate Judge for all pretrial proceedings pursuant to the provisions of 28 U.S.C. § 636(b)(1)(A) and (B) and Local Rule 73.02(B)(2)(g), D.S.C. Currently before the Court is Plaintiff's Motion for Recusal and Request to Vacate Prior Orders (Dkt. No. 199). For the reasons set forth below, Plaintiff's motion (Dkt. No. 199) is **DENIED**.

DISCUSSION

In her motion, Plaintiff moves for recusal of the undersigned United States Magistrate Judge under 28 U.S.C. § 455. (Dkt. No. 199 at 1.) More specifically, Plaintiff claims that since this case was reassigned on or about October 7, 2025, "every discovery ruling has been adverse to

Plaintiff, often reversing or disregarding prior directives,” which “creates an appearance of partiality the undermines public confidence in the fairness of these proceedings.” (*Id.*)

28 U.S.C. § 455 requires that a judge disqualify herself in any proceeding in which her impartiality may reasonably be questioned. “The inquiry is whether a reasonable person would have a reasonable basis for questioning the judge’s impartiality, not whether the judge is in fact impartial.” *In re Beard*, 811 F.2d 818, 827 (4th Cir. 1987). The Fourth Circuit has also stated, “[t]he alleged bias must derive from an extra-judicial source. It must result in an opinion on the merits on a basis other than that learned by the judge from his participation in the matter. The nature of the judge’s bias must be personal and not judicial.” *Id.* (internal citations omitted). A motion to recuse a judge “may not be predicated on the judge’s rulings in the instant case or in related cases, nor on a demonstrated tendency to rule any particular way, nor on a particular judicial leaning or attitude derived from his or her experience on the bench.” *Lindsey v. City of Beaufort*, 911 F. Supp. 962, 967–68 (D.S.C. 1995) (citing *United States v. Grinnell Corp.*, 384 U.S. 563 (1966); *Berger v. United States*, 255 U.S. 22, 31 (1921)). “A presiding judge is not . . . required to recuse himself simply because of ‘unsupported, irrational or highly tenuous speculation.’” *United States v. Cherry*, 330 F.3d 658, 665 (4th Cir. 2003) (quoting *United States v. DeTemple*, 162 F.3d 279, 287 (4th Cir. 1998)). Here, there is no basis for disqualification.

In her motion, Plaintiff primarily takes issue with the undersigned’s Order denying a Motion to Compel Plaintiff filed on September 16, 2025. (Dkt. No. 192.) Plaintiff claims that the undersigned improperly denied her Motion to Compel seeking compliance with a nonparty subpoena issued to her prior counsel. (*See generally* Dkt. No. 199.) However, Plaintiff seems to misconstrue much of the undersigned’s Order. Indeed, Plaintiff argues that the undersigned’s Order contradicts the Court’s earlier authorization of the nonparty subpoena at issue. While the

undersigned understands Plaintiff's confusion, this Court had never previously opined on the relevance of the materials sought in the subpoena. As such, the undersigned's findings do not contradict or overturn any of the Court's previous rulings.

Further, as the undersigned has explained, Federal Rule of Civil Procedure 45 imposes stricter limitations on discovery sought from nonparties and "[a] more demanding variant of the proportionality analysis [] applies when determining whether, under Rule 45, a subpoena issued against a nonparty 'subjects a person to undue burden' and must be quashed or modified." *Virginia Dep't of Corr. v. Jordan*, 921 F.3d 180, 189 (4th Cir. 2019) (quoting Fed. R. Civ. P. 45(d)(3)(A)(iv)). Ultimately, giving the nonparty status "special weight," a court must determine "whether the benefits of discovery to the requesting party outweigh the burdens on the recipient." *Id.*; *Spring v. Bd. of Trustees of Cape Fear Cmty. Coll.*, No. 7:15-CV-84-BO, 2016 WL 4204153, at *1 (E.D.N.C. Aug. 8, 2016). In this instance, the benefit of discovery to Plaintiff does not outweigh the burden on the nonparties because the "non-privileged communications" between Bonnie Hunt and/or Hunt Law LLC and Defendants and/or Defense counsel that Plaintiff seeks appear to have no bearing on the claims set forth in Plaintiff's Fourth Amended Complaint. (See generally Dkt. Nos. 79, 105, 164, 171, 172, 176, 178.) In addition, Plaintiff has failed to show why she cannot obtain the requested materials from Defendants.¹ (See generally Dkt. Nos. 105, 176.) This remains true, and the fact that the Court issued the subpoena at issue does not, in and of itself, contradict the undersigned's finding that the materials requested are not relevant and/or proportional to the needs of Plaintiff's case.

¹ In an abundance of caution and in deference to Plaintiff's *pro se* status, the undersigned will allow Plaintiff additional time to request the information at issue in this nonparty subpoena from Defendants. Defendants shall provide this information to Plaintiff by December 5, 2025. To the extent no such information exists, Defendants shall provide Plaintiff with an affidavit stating the same.

To the extent Plaintiff takes issue with the undersigned's "acceptance of [Defense] counsel's assertions [that certain materials do not exist] as fact," the undersigned notes that Federal Rule of Civil Procedure 11 prohibits Defense counsel from filing a response that contains factual contentions lacking evidentiary support. In the absence of evidence indicating otherwise—which Plaintiff has not provided here—the Court must take Defense counsel's statements as true. Should Plaintiff uncover evidence showing that Defense counsel submitted inaccurate or untrue information, Plaintiff is entitled to submit such evidence to the Court.

In a similar vein, the Court emphasizes that it will ensure that Plaintiff has a full and fair opportunity to complete discovery. In fact, the Court has already granted Plaintiff an extension of the discovery deadline for the limited purpose of allowing compliance with nonparty subpoenas issued to certain telephone providers. (*See, e.g.*, Dkt. No. 185, denying Plaintiff's request to extend the discovery deadline *without prejudice and with leave to refile* if necessary; Dkt. No. 200, extending discovery deadline for limited purpose of compliance with nonparty subpoenas.) To the extent additional issues arise with specific aspects of the discovery process, the undersigned will entertain similar requests to resolve any such issues.

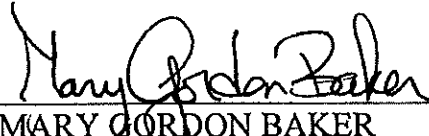
Ultimately, Plaintiff's motion is based upon her disagreement with the undersigned's rulings, which is not a proper basis for disqualification. Rather, a valid basis for disqualification must come from an "extrajudicial source," and "judicial rulings alone almost never constitute a valid basis for a bias or partiality motion." *Liteky v. United States*, 510 U.S. 540, 554–55 (1994). Because Plaintiff has presented no valid basis for disqualification, her motion (Dkt. No. 199) is **DENIED**.

CONCLUSION

For the foregoing reasons, Plaintiff's Motion for Recusal and Request to Vacate Prior Orders (Dkt. No. 199) is **DENIED**.

IT IS SO ORDERED.

October 30, 2025
Charleston, South Carolina



MARY GORDON BAKER
UNITED STATES MAGISTRATE JUDGE

ATTACHMENT B

AO 88A (Rev. 12/20) Subpoena to Testify at a Deposition in a Civil Action

UNITED STATES DISTRICT COURT

for the

District of South Carolina

**DEBRA NELSON***Plaintiff*

v.

Curtiss Wright Electro Mechanical Corp. d/b/a
Curtiss-Wright Steam and Air Solutions,
Stephanie Lanier and Shane Sablotsky*Defendant*

Civil Action No. 2:25-CV-00405-DCN-MHC

SUBPOENA TO TESTIFY AT A DEPOSITION IN A CIVIL ACTION

To:

Brian Fogarty

(Name of person to whom this subpoena is directed)

Testimony: YOU ARE COMMANDED to appear at the time, date, and place set forth below to testify at a deposition to be taken in this civil action. If you are an organization, you must promptly confer in good faith with the party serving this subpoena about the following matters, or those set forth in an attachment, and you must designate one or more officers, directors, or managing agents, or designate other persons who consent to testify on your behalf about these matters:

Place: Clark Bolen - 29 Gamecock Avenue, Suite 200 2nd
Floor Charleston, SC 29407

Date and Time: 10/21/2025 3:00 p.m. EST

The deposition will be recorded by this method: Stenographic and video

Production: You, or your representatives, must also bring with you to the deposition the following documents, electronically stored information, or objects, and must permit inspection, copying, testing, or sampling of the material:

The following provisions of Fed. R. Civ. P. 45 are attached – Rule 45(c), relating to the place of compliance; Rule 45(d), relating to your protection as a person subject to a subpoena; and Rule 45(e) and (g), relating to your duty to respond to this subpoena and the potential consequences of not doing so.

Date: _____

CLERK OF COURT

OR

*Signature of Clerk or Deputy Clerk**Attorney's signature*

The name, address, e-mail address, and telephone number of the attorney representing *(name of party)* _____, who issues or requests this subpoena, are:

Debra Nelson, Pro Se, _____

Notice to the person who issues or requests this subpoena

If this subpoena commands the production of documents, electronically stored information, or tangible things before trial, a notice and a copy of the subpoena must be served on each party in this case before it is served on the person to whom it is directed. Fed. R. Civ. P. 45(a)(4).

11/9/25, 5:19 PM

Gmail - Former Employees

ATTACHMENT C



Debra Nelson <nelsondebra62@gmail.com>

Former Employees

12 messages

Debra Nelson <[REDACTED]>

Sun, Oct 26, 2025 at 5:20 PM

To: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>

Counsel,

I need to confirm the addresses for former employees Antonio Coleman and Brian Fogarty

Respectfully,
Debra Nelson

Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>

Wed, Oct 29, 2025 at 9:51 AM

To: Debra Nelson <[REDACTED]>
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Ms. Nelson:

Antonio Coleman's last known address is:

Antonio Coleman
[REDACTED]

Curtiss Wright heard from Brian Fogarty this week. He indicated that he had a certified package from you at the post office (and so you appear to have his correct address). Unfortunately, he just had back surgery and is unable to pick up the package. (The post office refused to let his wife sign for it.)

To the extent you are seeking to take his deposition, he indicated that he is bed ridden and on strong opioids for the next few weeks.

Please also know that you have only two remaining depositions before you exceed the ten deposition limit. We owe you a response on David McKeown's availability and will be in touch later this week with that information.

11/9/25, 5:19 PM

Gmail - Former Employees

ATTACHMENT C

**T. Chase Samples**

Attorney at Law

Jackson Lewis P.C.

15 South Main Street

Suite 700

Greenville, SC 29601

Direct: (864) 872-8034 | Main: (864) 232-7000

Chase.Samples@jacksonlewis.com | www.jacksonlewis.com

[Quoted text hidden]

Debra Nelson <[REDACTED]>
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Wed, Oct 29, 2025 at 11:23 AM

I will require a doctors note from Brian stating this. Otherwise I will reschedule him for 11/2/25 and I will expect him to be there

[Quoted text hidden]

Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>
To: Debra Nelson <[REDACTED]>
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Fri, Oct 31, 2025 at 11:28 AM

Ms. Nelson:

David Mckeough is available next Monday or Tuesday for his deposition, anytime prior to 3:00 p.m. I suggest we do it via Teams to save time and costs for all parties. Please let us know which day and time works best for you.

David's deposition will be the ninth deposition you have taken, leaving you only one more.

Regarding your email below, related to Brian Fogarty, since he is a former employee, we do not have control over Mr. Fogarty, and so you'll have to subpoena his attendance. But, as we've indicated, he advised Curtiss Wright that he recently had back surgery and is unavailable in the short term to appear for his deposition.

[Quoted text hidden]

Debra Nelson <[REDACTED]>
To: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>

Fri, Oct 31, 2025 at 12:32 PM

My 2 witnesses until I get approval from the court will be Jeff Wornack and Antonio Coleman

[Quoted text hidden]

Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>
To: Debra Nelson <[REDACTED]>
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Fri, Oct 31, 2025 at 2:49 PM

Thank you, Ms. Nelson. What day(s) are you looking at for the Antonio Coleman deposition next week? He is outside of our control and so you'll have to subpoena him, if you haven't already.

11/9/25, 5:19 PM

Gmail - Former Employees

ATTACHMENT C

We'll report back on Jeff Womack's return to work status once we know more next week.



T. Chase Samples
Attorney at Law

Jackson Lewis P.C.
15 South Main Street
Suite 700
Greenville, SC 29601
Direct: (864) 672-8034 | Main: (864) 232-7000
Chase.Samples@jacksonlewis.com | www.jacksonlewis.com

From: Debra Nelson <[REDACTED]>
Sent: Friday, October 31, 2025 12:32 PM
To: Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>; Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>
Subject: Re: Former Employees

[Quoted text hidden]

Debra Nelson <[REDACTED]>
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

Fri, Oct 31, 2025 at 3:14 PM

You should already know Jeff's status. I will let you know when I have a date confirmed.
[Quoted text hidden]

Debra Nelson <[REDACTED]>
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

Sat, Nov 1, 2025 at 11:53 AM

At the moment until this case is reviewed I will only focus on Jeff Womack and Antonio Coleman.

I reviewed the discovery docs that you sent and it's a whole lot of nothing. The documents that I requested you have not produced. You are the professionals here so you know this is obstruction of justice. I will be filing something to preserve my rights and have it on the record until there is a new Judge assignment.
[Quoted text hidden]

Debra Nelson <[REDACTED]>
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

Sun, Nov 2, 2025 at 6:44 AM

Attached is the Notice of Deposition scheduled for November 5, 2025 from 12-2 p.m.
[Quoted text hidden]

 **Signed Notice of Deposition 2025_11_5.pdf**
756K

Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>
To: Debra Nelson <[REDACTED]>
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Tue, Nov 4, 2025 at 9:53 AM

Ms. Nelson:

11/9/25, 5:19 PM

Gmail - Former Employees

ATTACHMENT C

Jeff Wornack did not return to work yesterday or today, and he is advising the company that he has another doctor's appointment soon, and that his return to work date is uncertain.

We will plan to substitute in Dave McKeough. Can we plan to do his deposition through Zoom or Teams? Also, do you anticipate also deposing Antonio Coleman tomorrow?

Thanks.

[Quoted text hidden]

Debra Nelson <[REDACTED]>
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Tue, Nov 4, 2025 at 1:47 PM

No I have it scheduled to be in person. I will be demanding a doctors note from Jeff because I believe defense is operating in bad faith
[Quoted text hidden]

Debra Nelson <[REDACTED]>
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Wed, Nov 5, 2025 at 12:30 PM

Counsel,

In light of what was discussed in the deposition of David McKeough on November 5, 2025 starting at 12:00 p.m. I will need a copy of Patrick Ingram's certification test for Final Inspection (Inspection of Nuclear)
[Quoted text hidden]

11/9/25, 4:59 PM

ATTACHMENT D

Gmail - Automatic reply: Former Employees



Debra Nelson <nelsondebra62@gmail.com>

Automatic reply: Former Employees

8 messages

Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>

Wed, Oct 29, 2025 at 11:24 AM

To: Debra Nelson <[REDACTED]>

I am out of the office in depositions through Thursday, October 30th. If you need assistance prior to my return, please contact my assistant, Marie Wilson, Marie.wilson@jacksonlewis.com.

Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>

Wed, Nov 5, 2025 at 12:31 PM

To: Debra Nelson <[REDACTED]>

I am out of the office traveling and in meetings on Wednesday and Thursday and so my response to your email may be delayed. If you need immediate assistance, then please contact my assistant, Paula Davis, paula.davis@jacksonlewis.com.

Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>

Wed, Nov 5, 2025 at 12:31 PM

To: Debra Nelson <[REDACTED]>

I am out of the office in depositions through Thursday, November 6th. If you need assistance prior to my return, please contact my assistant, Marie Wilson, Marie.wilson@jacksonlewis.com.

Debra Nelson <[REDACTED]>

Wed, Nov 5, 2025 at 1:54 PM

To: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

I will need Antonio Coleman's badge times for July 10-14, 2023

[Quoted text hidden]

Debra Nelson <[REDACTED]>

Wed, Nov 5, 2025 at 1:58 PM

To: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

I will need Patrick Ingram's pay record for 2022-2023

[Quoted text hidden]

Debra Nelson <[REDACTED]>

Wed, Nov 5, 2025 at 10:48 PM

To: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Since you have contacted Brian Fogarty and he has not participated in depositions he needs to return my witness fee ASAP. I expect it back within 7 days.

[Quoted text hidden]

Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>

Thu, Nov 6, 2025 at 2:20 PM

To: Debra Nelson <[REDACTED]>

Cc: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

Ms. Nelson,

We've let Brian Fogarty know that he is to mail the witness fee back to you. Other than telling him this, we will not be otherwise be involved in interactions with third parties that you have subpoenaed.

11/9/25, 4:59 PM

Gmail - Automatic reply: Former Employees

[Quoted text hidden]

ATTACHMENT D

Debra Nelson <[REDACTED]>

Thu, Nov 6, 2025 at 3:11 PM

To: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

No problem I am sending him a demand letter today for refund of witness fees and mailing costs

[Quoted text hidden]

ATTACHMENT E

SENDER: COMPLETE THIS SECTION		COMPLETE THIS SECTION ON DELIVERY	
■ Complete items 1, 2, and 3. ■ Print your name and address on the reverse so that we can return the card to you. ■ Attach this card to the back of the mailpiece, or on the front if space permits.		A. Signature ☒ Agent ☐ Addressee	
1. Article Addressed to: Brian Fogarty		B. Received by (Printed Name) Michele Fogarty	
2. Article Addressed to: Brian Fogarty		C. Date of Delivery 11-1-25	
3. Service Type ☐ Adult Signature ☐ Adult Signature Restricted Delivery ☐ Certified Mail® ☐ Certified Mail Restricted Delivery ☐ Collect on Delivery ☐ Collect on Delivery Restricted Delivery		☐ Priority Mail Express® ☐ Registered Mail™ ☐ Registered Mail Restricted Delivery ☐ Signature Confirmation™ ☐ Signature Confirmation Restricted Delivery	
4. Article Number (Transfer from earlier label) 9590 9402 8897 4064 2211 44		5. Is delivery address different from item 1? ☐ Yes ☒ No If YES, enter delivery address below:	
PS Form 3811, July 2020 PSN 7530-02-000-9053		Domestic Return Receipt	

USPS TRACKING#



9590 9402 8897 4064 2211 44

United States
Postal Service

* Sender: Please print your name address and ZIP+4® in this box*

Debra Nelson

First-Class Mail
Postage & Fees Paid
USPS
Permit No. G-10

11/12/25, 11:05 AM

ATTACHMENT F

Gmail - Nelson v. Curtiss Wright Electro Mechanical Corp., et al



Debra Nelson <nelsondebra62@gmail.com>

Nelson v. Curtiss Wright Electro Mechanical Corp., et al

14 messages

Debra Nelson <[REDACTED]>

Wed, Oct 15, 2025 at 5:35 PM

To: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>

Subject: Supplemental Discovery Request – DAR and Badge Access Records (Before Oct. 21 Deposition)

Dear Mr. Samples and Mr. Valenza,

Following our prior correspondence regarding deposition scheduling, please see the below supplemental discovery request tied to the upcoming October 21, 2025 deposition.

Pursuant to Rules 26 and 34 of the Federal Rules of Civil Procedure, I am requesting the following materials:

1. Unredacted DAR Reports for Michelle Broman-Bolton and Brian Fogarty, previously produced with redactions. These records are relevant to comparator discipline, workplace safety, and retaliation analysis. Please produce the complete versions or identify any specific privilege claimed under Rule 26(b)(5).

2. Badge-Entry and Exit Logs (Facility Access Reports) for the period October 6–17, 2025 for the following Curtiss-Wright employees:

Jeff Womack
Stephanie Lanier
Shane Sablotsky
Michelle Broman-Bolton
Patrick Ingram
Joe Cabaup
David McKeown
Matthew Claxton

These records are needed to verify presence at the facility and to clarify defense representations that Mr. Womack remains on protected medical leave, despite his own statement to me that he has returned to work part-time.

This request is made in advance of the October 21 deposition so that these materials can be reviewed beforehand and used efficiently during questioning.

Please provide these materials within five (5) business days or advise whether you intend to object.

If Defendants are unwilling to produce the requested reports before October 21, please confirm this in writing so that I may notify the Court in advance of the deposition.

Thank you for your attention to this request.

Sincerely,

Debra Nelson
Pro Se Plaintiff



Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>

Thu, Oct 16, 2025 at 5:02 PM

To: Debra Nelson <[REDACTED]>
Cc: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

11/12/25, 11:05 AM

Gmail - Nelson v. Curtiss Wright Electro Mechanical Corp., et al

ATTACHMENT F

Not only is this request untimely, it is inappropriate. As we have previously advised you on multiple occasions, Mr. Womack is out of work on protected medical leave and we will produce him for deposition once he returns, even if it is after the discovery period ends. We had asked you not to disturb Mr. Womack's protected medical leave, but you contacted him anyway and told him that he was required to sit for a deposition. He contacted Curtiss Wright to complain that you were contacting him while he was on leave. There is no obligation for us to prove to your satisfaction that Mr. Womack is on leave by producing his Badge entry and exit logs, and we will not do so. Further, the badge-entry and exit logs of the other individuals for the past 10 days that you've listed are not relevant to Mr. Womack's leave or any issue in this case and seem to serve no purpose other than to burden Curtiss Wright or gain personal information on individuals who you intend to depose next Tuesday. As such, we will not produce these records.

Finally, yesterday you sent us an email stating something to the effect of "I'd like to add David McKeown to the list", to the extent that this means that you would like to depose him on Tuesday, October 21, that is not proper notice to do so. This is the first time there has been any mention of this individual in this case and there are only 3 business days between your request and the proposed deposition date. That is not enough time to assess his availability and adequately and fairly prepare a witness for deposition. As such he will not be produced for deposition on Tuesday, October 21. Furthermore, if you intend to depose Jeff Womack and at least three former employees, David McKeown would be your **eleventh (11th)** deposition which exceeds the number allowed to you under the Federal Rules of Civil Procedure.



Joseph V. Valenza
Attorney at Law

Jackson Lewis P.C.
15 South Main Street
Suite 700
Greenville, SC 29601
Direct: (864) 672-8078 | Main: (864) 232-7000
Joseph.Valenza@jacksonlewis.com | www.jacksonlewis.com

[Quoted text hidden]

Debra Nelson <[REDACTED]>
To: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>
Cc: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

Fri, Oct 17, 2025 at 7:37 PM

The 30-day period under Rule 34(b)(2)(A) does not apply in this situation. The request is limited in scope and made in direct connection with the October 21 deposition. Courts regularly require expedited production where a specific event is pending.

Please confirm whether Curtiss-Wright will produce the unredacted DARs and badge-access logs before October 21 so that I may prepare adequately. If not, I'll notify the Court that Defendants are withholding relevant, time-sensitive evidence.

[Quoted text hidden]



image142551.png
2K

11/12/25, 11:05 AM

Gmail - Nelson v. Curtiss Wright Electro Mechanical Corp., et al

ATTACHMENT E**Debra Nelson** <[REDACTED]>

Fri, Oct 17, 2025 at 7:50 PM

To: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Cc: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

Please find attached Plaintiff's Supplemental Request for Production served under Rule 34 relating to unredacted DAR reports and badge-access records

[Quoted text hidden]

**Signed Supplementa Request for Production - DAR and Badge Access Times.pdf**

314K

Debra Nelson <[REDACTED]>

Fri, Oct 31, 2025 at 10:52 AM

To: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Good morning Counsel,

What's the status on my Production request. I need this information on or before November 3, 2025

[Quoted text hidden]

Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>

Fri, Oct 31, 2025 at 1:54 PM

To: Debra Nelson <[REDACTED]>

Cc: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

Ms. Nelson,

This email is in response to your email below and the email containing additional written discovery requests that you sent to us this morning. As I stated in my previous email, per the Court's July 8th Scheduling Order, all discovery requests that would have a due date after the November 5, 2025 discovery deadline are untimely. Under Rule 34, the time period to respond is 30 days from the date you serve us with the request. The discovery requests that you served on October 15 and today, October 31, would have due dates after the discovery deadline. Because these requests are untimely, we will not be responding to them.

Additionally, the unredacted DAR reports for Michelle Broman-Boltan and Brian Fogarty were already produced to you in Defendants' Responses to Plaintiff's Third Requests for Production.

[Quoted text hidden]

Debra Nelson <[REDACTED]>

Fri, Oct 31, 2025 at 7:05 PM

To: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Cc: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

When was this third request sent out because I would have to check.

[Quoted text hidden]

Debra Nelson <[REDACTED]>

Sat, Nov 1, 2025 at 4:18 PM

To: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Cc: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

I would like copies of ALL NDT tests taken by myself and Patrick Ingram. First page only will suffice. It includes the dates, method, name and score. Joe Cabaup has to maintain training records for a required amount of time. Joe Cabaup stated he still has my tests in the deposition on 10/21/25. I would like the copies on or before 11/5/25

[Quoted text hidden]

Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>

Mon, Nov 3, 2025 at 10:33 AM

To: Debra Nelson <[REDACTED]>

ATTACHMENT F

IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

DEBRA NELSON

Plaintiff,

C.A. No.: 2:25-CV-00405-RMG-MGB

Curtiss Wright Electro Mechanical Corp. d/b/a

Curtiss-Wright Steam and Air Solutions

STEPHANIE LANIER, and SHANE

SABLOTSKY,

Defendants.

PLAINTIFF'S SUPPLEMENTAL REQUEST FOR PRODUCTION – DAR AND
BADGE ACCESS RECORDS

Pursuant to **Rule 34 of the Federal Rules of Civil Procedure**, Plaintiff requests that Defendants produce the following documents and electronically stored information within **14 days** of service of this request:

Request No. 1 – Unredacted DAR Reports

Produce **complete, unredacted copies** of all **Disciplinary Action Reports (DAR)** for **Michelle Broman-Bolton** and **Brian Fogarty**.

These documents are relevant to comparator discipline, workplace-safety incidents, and retaliation analysis. Any redactions made previously were not supported by a privilege log under Rule 26(b)(5). If Defendants assert any privilege, they must provide a **privilege log** identifying the document, the basis for redaction, and the parties involved.

Request No. 2 – Badge-Access Reports

Produce **badge-entry and exit (facility-access) logs** for the period **October 6–17, 2025**, for the following Curtiss-Wright employees:

- Jeff Womack
- Stephanie Lanier
- Shane Sablotsky
- Michelle Broman-Bolton
- Patrick Ingram
- Joe Cabaup
- David McKeown

ATTACHMENT F

- Matthew Claxton

These records are necessary to confirm employee presence and verify Defendants' representations that Jeff Womack remains on medical leave, despite his own statement to Plaintiff that he returned to work part-time.

Request No. 3 – Verification and Certification

Produce a **written certification** under oath from an authorized Curtiss-Wright representative confirming that:

- a) the DAR reports and badge-access records are complete and unaltered; and
- b) each of the above-named employees was properly notified of any scheduled deposition dates between **October 6–21, 2025**.

Respectfully submitted 17th of October, 2025,



Debra Nelson
Pro Se Plaintiff



Jeff Womack did not return to work yesterday or today, and he is advising the company that he has another doctor's appointment soon, and that his return to work date is uncertain.

We will plan to substitute in Dave McKeough. Can we plan to do his deposition through Zoom or Teams? Also, do you anticipate also deposing Antonio Coleman tomorrow?

Thanks.

(Quoted text hidden)

Debra Nelson <[REDACTED]>
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Tue, Nov 4, 2025 at 1:47 PM

No I have it scheduled to be in person. I will be demanding a doctors note from Jeff because I believe defense is operating in bad faith

(Quoted text hidden)

Debra Nelson <[REDACTED]>
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Wed, Nov 5, 2025 at 12:30 PM

Counsel,

In light of what was discussed in the deposition of David McKeough on November 5, 2025 starting at 12:00 p.m. I will need a copy of Patrick Ingram's certification test for Final Inspection (Inspection of Nuclear)

(Quoted text hidden)

11/12/25, 10:45 AM

ATTACHMENT F

Gmail - Automatic reply: Former Employees

We've let Brian Fogarty know that he is to mail the witness fee back to you. Other than telling him this, we will not be otherwise be involved in interactions with third parties that you have subpoenaed.

From: Debra Nelson <[REDACTED]>
Sent: Wednesday, November 5, 2025 10:49 PM
To: Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>
Subject: Re: Automatic reply: Former Employees

Since you have contacted Brian Fogarty and he has not participated in depositions he needs to return my witness fee ASAP. I expect it back within 7 days.

On Wed, Nov 5, 2025 at 1:58 PM Debra Nelson <[REDACTED]> wrote:

I will need Patrick Ingram's pay record for 2022-2023

On Wed, Nov 5, 2025 at 1:54 PM Debra Nelson <[REDACTED]> wrote:

I will need Antonio Coleman's badge times for July 10-14, 2023

On Wed, Nov 5, 2025 at 12:31 PM Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com> wrote:

I am out of the office in depositions through Thursday, November 6th. If you need assistance prior to my return, please contact my assistant, Marie Wilson, Marie.wilson@jacksonlewis.com.

ATTACHMENT I

IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

DEBRA NELSON	)	
	)	C.A. No.: 2:25-CV-00405-DCN-MHC
Plaintiff,	)	
	)	
v.	)	
	)	
Curtiss Wright Electro Mechanical Corp.	)	
d/b/a Curtiss-Wright Steam and Air Solutions	)	
STEPHANIE LANIER, and	)	
SHANE SABLITSKY,	)	
	)	
Defendants,	)	

NOTICE OF RESCHEDULED DEPOSITIONS (DATE TBD)

PLEASE TAKE NOTICE that, due to delays in issuance of nonparty subpoenas and to avoid prejudice to deposition sequencing, Plaintiff hereby resets the following depositions to October 21, 2025, at the times and locations set forth below.

Deponent	Start Time (ET)	Location/Platform	Documents (if any)
Caleb Roy / 30(b)(1) Individual fact witness	TBD	Clark Bolen - 29 Gamecock Avenue, Suite 200 2 nd Floor, Charleston, SC 29407	None
Jeff Womack 30(b)(1) Individual Fact Witness	TBD	Clark Bolen - 29 Gamecock Avenue, Suite 200 2 nd Floor, Charleston, SC 29407	Text Messages

Respectfully submitted 12th of November, 2025,

/s/ Debra Nelson
Debra Nelson
Plaintiff, Pro Se

